

MAINS MASTER PROGRAM (MMP) 2024

POLITY – 7

Appointment to various Constitutional Posts, Powers, Functions and Responsibilities of various Constitutional Bodies.

Election Commission of India

- **Constitutional Provisions [Art.324]**
 - ✓ Superintendence, direction & control - L.S, R.S, State Legislature, President & Vice-President.
 - ✓ CEC & Election Commissioners
 - ✓ Service conditions – Parliamentary law [Election Commission act, 1991]
 - ✓ Removal - Chief Election commissioner & Election Commissioners
- **Constitutional & Legal Mandate**
 - ✓ Conducting Elections
 - ✓ Ensuring Free and Fair Elections
 - ✓ Registration and Recognition of Political Parties
 - ✓ Enforcing Model code of conduct
 - ✓ Resolving disputes & recommending disqualifications
 - ✓ Voter registration and awareness generation
 - ✓ Recommending periodic electoral reforms
- **Model code of conduct**
 - ✓ The MCC is a set of guidelines established by the ECI to **regulate political parties and candidates** ahead of elections, ensuring that the electoral process is conducted smoothly, fairly, and free from any corrupt practices.
 - ✓ Brief History – State election in Kerala in 1960 & then in 1962 (general & state elections); 1991 watershed moment for MCC.
 - ✓ Who are all covered under MCC?
 - ✓ When does it comes into force?
 - ✓ What does it cover? – conduct of political parties, candidates in general; public meetings & processions; conduct of political parties & candidates during polling day & at polling booths; filing of complaints for violation; regulation of political party in power; election manifesto etc.
 - ✓ Is it legally enforceable?
- **Role of ECI in enforcing the Model Code of Conduct**
 - ✓ **Monitoring and Enforcement**
 - CI monitors compliance with the MCC through a network of observers, flying squads, and media monitoring teams.
 - Citizen vigilance mechanism [**cVIGIL**]
 - violations by issuing notices to offending parties, seeking explanations, and, if necessary, imposing penalties
 - ✓ **Public Awareness and Education**

- ECI conducts voter education campaigns to inform the public about the MCC and the importance of ethical electoral conduct [**Example – SVEEP initiative**]
- ✓ **Adaptation and Updates**
 - The ECI regularly updates the MCC to address new challenges and changing political and social landscapes.
 - Example – **Subramaniam Balaji Case, 2013**
- **Electoral Reforms**
 - ✓ Electoral reforms refer to a series of changes or improvements made to the electoral system and processes with the aim of enhancing **the fairness, transparency, efficiency, and integrity** of elections.
 - ✓ **Focus areas**
 - Cleansing the electoral system
 - Reforms to make the system more efficient
 - Reforms to make ECI more efficient
 - ✓ **Cleansing the electoral system**
 - **Prevention of Criminalization of Politics**
 - a) ADR Vs UoI, 2002 – Criminal antecedents mandatory [wrong information is not a corrupt Practice]
 - b) ECI – make it a corrupt practice
 - c) ADR – Framing of charges on certain offences shall be ground for disqualification
 - d) Special Courts for trial
 - **Use of money power in elections**
 - a) Amend RPA, 1951 (Sec. 51B – postpone election in case of money power)
 - b) National Electoral fund [S Y Quraishi]
 - c) Partial state funding / State funding of elections [Indrajit Gupta Committee]
 - **Issue of Paid News**
 - a) A camouflaged advertisement as news in print or in electronic form for a price in cash or kind.
 - b) Regulatory Mechanism – Press council of India; National Broadcasting standards Authority
 - c) ECI – Amend RPA, 1951 & make paid news an electoral offence
 - **Deregistering of defunct / dubious political parties**
 - ✓ **Reforms to make the system more efficient**
 - Effective Monitoring and Enforcement of MCC
 - Public Awareness and Education
 - Use of EVM [Version 3.0 – Automatic shutdown in case of tampering]
 - Proportional Representation + First past the post system [S.Y Quraishi]

- Unified voter list [LCI, 255th Report]
- ✓ **Strengthening ECI**
 - **Appointment of CEC & EC**
 - **Removal of Election commissioners**
 - **Budget to be Charged**
 - **Independent secretariat**
- **Way Forward**
 - ✓ Effective implementation of MCC
 - ✓ Comprehensive electoral reforms
 - ✓ Empowering the ECI
 - ✓ Integrity of the institution and **free & fair election** is which part of **basic structure** and very essence of democracy.

Questions

1. “Reforming the electoral system is crucial for enhancing the credibility and fairness of the democratic process”. In this context highlight the important reforms to address the various issues in the present system. [15]
2. The Election Commission of India (ECI) plays a crucial role in maintaining the integrity and fairness of elections in India, and one of its most significant tools in this regard is the Model Code of Conduct (MCC). Discuss [10]

Salient Features of the Representation of People’s Act

- **Basic Information**
 - ✓ Article 324 & Article 327
 - ✓ RPA 1950 & RPA 1951
- **Representation of people’s Act, 1951**
 - ✓ **Disqualification under the act**
 - **Disqualification and conviction for certain offences**
 - a) Shall be disqualified on conviction irrespective of the term (protection of civil rights act, custom act, prevention of corruption act, prevention of insults to national honours act etc.)
 - b) Shall be disqualified if convicted for 6 months [Dowry prohibition, adultery of foods etc.]
 - c) Other offences – imprisoned for two years [immediate disqualification]
 - Disqualification on ground of **corrupt Practices** [Indira Case, 1975]
 - Disqualification for **Govt. Contracts**
 - Disqualification **of office under government company**
 - Disqualification for failure to **lodge election expenses**
 - Disqualification - dismissal for **corruption or disloyalty**

➤ **Remedy Available**

- ✓ **Sec.11** – power of the ECI to remove or reduce the punishment by recording the reasons in writing [Except – disqualification on corrupt practice]
- ✓ Election petition to High Courts
- ✓ Appeals can be made in Supreme Court

➤ **Procedure before the High Court**

- ✓ Procedure – civil procedure code
- ✓ Evidence – Evidence act
- ✓ Decision – Dismiss, void, declare the election to be void & declare any other candidate as duly elected, declare the corrupt practice has been proved & impose cost etc.

➤ **Grounds for declaring an election petition to be void**

- ✓ that on the date of his election a **returned candidate was not qualified**, to be chosen to fill the seat under the Constitution or this Act
- ✓ that **any corrupt practice** has been committed by a returned candidate or his election agent or by any other person with the consent of a returned candidate or his election agent
- ✓ that any **nomination** has been **improperly rejected**
- ✓ by the **improper acceptance or any nomination**
- ✓ any corrupt practice committed in the interests of the returned candidate [by any agent other than his election agent]
- ✓ by the **improper reception, rejection of any vote** or the reception of any vote which is void
- ✓ by any **non-compliance** with the **provisions of the Constitution or of this Act** or of any rules or orders made under this Act

Questions

1. What are the various grounds for disqualification under the representation of people's act and elaborate on the remedies available in case of disqualification? [10]
2. What are the grounds on which an election petition can be declared void under the representation of people's act?

Statutory, Regulatory, and various Quasi-judicial Bodies

National Human Rights Commission

➤ **Definition**

- ✓ **Human rights** are **fundamental rights and freedoms** that belong to every person, regardless of their nationality, race, gender, ethnicity, religion, language, or any other status.
- ✓ These rights are based on the principles of **equality, dignity, and respect** for all individuals and are universal and inalienable

➤ **Protection of human rights act, 1993**

✓ **Powers & functions**

- enquire into violation of human rights by public servants
- visit jails & detention places to study living conditions
- study treaties & international conventions on human rights
- to spread awareness and research in human rights
- undertake other functions to promote human rights

✓ **Criticism of NHRC**

- Recommendatory in nature
- Lack of Finances
- Politicisation in appointments
- No investigating powers & dependence on govt. agencies
- Exclusion of armed forces
- Delays & backlogs
- Lack of awareness

✓ **Way Forward**

- Improved investigative mechanism
- Enhanced resource allocation & infrastructure
- Making appointments more transparent
- Improving public awareness
- Strengthening powers through legal reforms

Question

1. **The Human Rights Commissions, including the NHRC and SHRCs, play a vital role in the protection and promotion of human rights in India. However, they face significant structural and practical challenges. Comment**

Central Information Commission

- The **Central Information Commission (CIC)** is a statutory body in India established under the Right to Information Act (RTI Act), 2005
- CIC plays a crucial role in ensuring transparency & accountability in the functioning of the government.
- Functions of the Commission
 - ✓ Ensuring Compliance with RTI Act
 - ✓ Penalties and Disciplinary Action
 - ✓ Adjudication of Appeals and Complaints
 - ✓ Monitoring and Reporting
 - ✓ Promoting Awareness
 - ✓ Advisory Role
- **Issues faced by the Information Commission**
 - ✓ Vacancies and Appointment Delays
 - ✓ Backlog of Cases

- ✓ Limited Enforcement Powers
- ✓ Inadequate Resources
- ✓ Lack of Public Awareness
- ✓ Lack of independence & Autonomy [RTI amendment 2019]
- **Way Forward**
 - ✓ Enhancing Enforcement Powers
 - ✓ Strengthening Institutional Capacity
 - ✓ Reducing Backlogs
 - ✓ Encouraging Proactive Disclosure
 - ✓ Improving Public Awareness and Education
 - ✓ Collaboration with Civil Society and Media

Question

1. **The central information commission is very crucial in enforcing transparency & accountability in governance. In this context discuss some of the issues preventing the commission from discharging its responsibilities effectively & suggest suitable reforms. [10]**

National Commission for Women

- The National Commission for Women (NCW) is a statutory body established by the Government of India in 1992 under the National Commission for Women Act, 1990.
- The objective of the NCW is to represent the rights of women in India and to provide a voice for their issues and concerns.
- **Functions of the Commission**
 - ✓ enquire into violation of constitutional & Legal rights of women
 - ✓ recommend appropriate measures to govt.
 - ✓ study treaties & international conventions on women rights
 - ✓ to spread awareness and research regarding women rights
 - ✓ undertake other functions to promote women rights

Question

1. **“The National Commission for Women plays a vital role in advocating for the rights and welfare of women in India”. Comment [10]**

National Commission for minorities

- The **National Commission for Minorities (NCM)** is a statutory body in India established by the Government of India under the National Commission for Minorities Act, 1992.
- The primary objective of the NCM is to safeguard the interests of minorities and ensure that their rights guaranteed under the constitution & laws are protected and promoted.
- **Minorities** – Muslims, Christians, Buddhists, Sikhs, Parsis & Jains

- **Constitutional Provisions** – Minority rights under Part III, special linguistic officer, provisions for instruction in mother tongue etc.
- **Functions of the commission**
 - ✓ enquire into violation of constitutional & Legal rights of Minorities
 - ✓ Evaluate their progress under the Union & States
 - ✓ Recommend appropriate measures to govt.
 - ✓ to spread awareness and research regarding minority rights
 - ✓ undertake other functions to promote minority rights

Question

1. **The National Commission for Minorities plays a vital role in protecting and promoting the rights and welfare of minority communities in India. Discuss [10]**

National Commission for Protection of Child Rights

- The **National Commission for Protection of Child Rights (NCPCR)** is a statutory body in India established under the Commissions for Protection of Child Rights Act, 2005.
- The commission is mandated to protect and promote the rights of children in India, ensuring their well-being and safeguarding their rights as enshrined in the **Constitution, laws, and international conventions.**
- Functions of the Commission
 - ✓ enquire into violation of constitutional & Legal rights of the Children
 - ✓ Evaluate their progress under the Union & States
 - ✓ recommend appropriate measures to govt.
 - ✓ to spread awareness and research regarding child rights
 - ✓ undertake other functions to promote child rights

Question

1. **The National Commission for Protection of Child Rights plays a crucial role in safeguarding the rights and welfare of children in India. Discuss [10]**

Competition Commission of India

- **Statutory Provision**
 - ✓ Competition Act, 2002
 - ✓ Monopolies and Restrictive Trade Practices Act, 1969 (MRTP Act) was repealed [Raghavan Committee]
- **Objectives of Competition Act, 2002**
 - ✓ Prohibits anti-competitive practices
 - ✓ Abuse of dominant position by enterprises
 - ✓ Regulates combinations (acquisitions & mergers) likely to have adverse effect on competition
- **Powers & Functions**
 - ✓ duty to eliminate practices having an adverse effect on competition

- ✓ promote and sustain competition
- ✓ protect the interests of consumers and ensure freedom of trade carried on by other participants
- ✓ Investigation and Enforcement
- ✓ mandated to give its opinion on competition issues to government or statutory authority
- ✓ Research & creating awareness of competition law
- ✓ Collaboration with International Bodies
- ✓ Advisory Role
- **Appellate Authority**
 - ✓ National Company law Appellate Tribunal [2017]
- **Supreme Court Directions**
 - ✓ **Predatory Pricing** – intention & cost of production
 - ✓ **Overlap in Jurisdiction** – CCI to wait for the findings of technical regulator [*Competition Commission of India v. Bharti Airtel Limited*, 2019]
 - ✓ **Power to conduct search & seizures** [*Competition Commission of India v. Grasim Industries Limited*, 2018]
 - ✓ **CCI power to appoint economic experts in complex cases** [*Excel Crop Care Limited v. Competition Commission of India*, 2107]
 - ✓ **Doctrine of “effect on competition”** – no need to implement an agreement the mere potential to affect competition is sufficient
 - ✓ **Guidelines for penalty imposition** – proportionate to anti-competitive practice
- **Challenges**
 - ✓ Defining relevant market in digital era
 - ✓ Developments – web 3.0, AI, IoT, Blockchain etc.
 - ✓ Data Protection & Privacy
 - ✓ Identifying cartelization
 - ✓ Delays in Case Resolution
 - ✓ Coordination with Other Regulatory Bodies

Questions

1. Discuss the role of the Competition Commission of India in containing the abuse of dominant position by the Multi-National Corporations in India. Refer to the recent decisions. [10]

Quasi-Judicial Bodies

- **Constitutional Provisions**
 - ✓ Art. 323A, 323B, Art. 263 etc.

- ✓ Examples – CAT, Interstate River water tribunals, CCI, NGT, Parliament, Election Commission of India etc.
- **Difference Between Judicial Vs Quasi-Judicial bodies**
 - ✓ Jurisdiction
 - ✓ Procedure
 - ✓ Service Conditions
 - ✓ Independence
- **Case Laws**
 - ✓ L Chandra Kumar case, 1997
- **Advantages**
 - ✓ Reduces burden on judiciary; cheaper & faster; expert adjudication; procedural flexibility etc.
- **Suggestions / Way Forward**
 - ✓ Service Conditions & Independence [L Chandra Kumar case]
 - ✓ Select Committee [R Gandhi Case, 2010]
 - ✓ Single Nodal Ministry [LCI]
 - ✓ Awareness & Access
 - ✓ Reduce overlapping functions

Questions

1. What is a quasi-judicial authority? Asses the advantages of quasi-judicial authority over judicial authorities. [10]
2. What do you understand by tribunalization of justice? Do tribunals take away the powers of the constitutional courts? Examine [10]